ARTICLE 17 QUESTIONS & ANSWERS REPRESENTATION

1. When the Union designates stewards and alternate stewards, is it required to specify the order in which they will be utilized?

Response: In keeping with Article 17.2.A, the Union must provide a list of stewards designated for specific work areas. Alternate stewards are to be listed sequentially.

2. Are Union representatives who are certified pursuant to Article 17.2.C and 17.2.D entitled to compensation in accordance with Article 17.4., *Payment of Stewards*?

Response: No. Stewards/Union representatives certified in accordance with Article 17.2.C and 17.2.D are not on official time when performing steward duties. Such stewards are compensated by the Union.

3. What should occur when a steward requests time to process a grievance or needs additional processing time and the steward is needed on his/her work assignment?

Response: The following applies when time for the immediate or continued release of the steward is not possible:

- the supervisor must inform the steward of the reasons for the delay and when time will be available;
- the steward must request the time or additional time needed and provide reasons for that request. All such instances must be dealt with on an individual basis. Such requests cannot be unreasonably denied;
- when a request by an employee for a steward must be delayed, the supervisor should inform the employee of the reasons for the delay and the time when the steward should be available;
- a steward will not be unreasonably required to return to his/her assignment once released to perform Union duties.

4. Must an employee's medical records be released to the Union in the course of its investigation of a grievance?

Response: Medical records (under the authority and control of the Postal Service) that are requested in the course of the investigation of a grievance will be released if it meets the criteria outlined in Handbook AS-353 Appendix (USPS 120.090).

5. Does an employee have a right to have a steward present during an investigatory interview or an interrogation by the Inspection Service or the Office of Inspector General (OIG)?

Response: Yes, in those circumstances in which the employee is involved in an investigatory interview which he/she reasonably believes will result in discipline against him/her, and the employee requests representation, the Postal Service must provide a representative if the interview is to continue.

If an employee requests a steward or Union representative to be present during the course of an interrogation by the Inspection Service or the Office of Inspector General (OIG), such requests will be granted.

6. Do stewards have the right to interview non-postal witnesses during their investigation of a possible grievance?

Response: Once it has been determined that a non-postal witness has "relevant information and/or knowledge directly related to the instant dispute under investigation," the steward should be permitted reasonable time on the clock to interview that witness.

Requests for interviews off postal premises must be reasonable and determinations regarding those requests must be made on a case-by-case basis. It is permissible for the supervisor and/or the steward to call the potential witness in advance to assure that the witness is both willing and available to be interviewed and to make arrangements for the interview.

7. Can stewards interview employees of other crafts in the course of a grievance investigation?

Response: If the grievance being investigated is relevant to the steward's craft, and the conditions of Article 17.3 are met, the steward has the right to interview other craft employees. If the grievance is not relevant to the steward's craft, however, the provisions of Article 17.2.B and 17.2.E must be applied.

8. Are there limitations on the steward's right to access "documents, files and other records necessary for processing a grievance?"

Response: Management may deny access to such records where it makes a "reasonable" determination that such documents are not "necessary" for the processing of a grievance.

9. What rights does Article 17.3 provide to stewards in instances in which excessing is planned?

Response: A steward cannot be involuntarily reassigned from his/her tour, station or branch, or installation so long as there is work there for which that steward is qualified, unless the steward gives up this right.

10. Do the payment procedures cover time spent by a steward in writing an appeal to Step 3?

Response: Yes, the writing of grievance appeals to Step 3 is included in the term "grievance handling."

11. Under what conditions is the Postal Service required to compensate a grievant who attends a Step 2 grievance meeting?

Response: The Postal Service is required to compensate the grievant for the time actually spent at the Step 2 grievance meeting, so long as the time spent is part of the grievant's regular work day. Time spent by the grievant traveling to or from the grievance meeting is not considered "grievance handling" and is not compensable under Article 17.4. Note that witnesses required to attend the Step 2 meeting would be compensated for their travel to and from that meeting, due to the difference in contractual language applying to witnesses.

There is no provision for payment of overtime when attendance at a grievance hearing extends beyond an employee's regular work hours.

12. Is there a set amount of time to which the Union is entitled to address employees during orientation?

Response: No. The parties have agreed that the Union will be provided with "ample opportunity" to address new employees during orientation. This rule includes postal support employees (PSEs) orientation.

13. How are situations handled in which a grievant requests representation and neither the steward assigned to the work area nor the alternate are available?

Response: Normally, the supervisor would grant the grievant an extension for filing the grievance in circumstances where neither the steward nor the alternate was available and time limits are an issue.

14. Can a Union member employed at one post office be designated as a representative at another post office?

Response: Yes. In keeping with Article 17.2.C and 17.2.D, a Union member actively employed in a particular office can be designated to process a grievance at another post office, so long as written certification is provided by the Union to the Area Level.

Such representatives are not entitled to compensation by the Postal Service and must act, while in this capacity, in lieu of stewards otherwise designated under Article 17.2.A and 17.2.B at the facility where the grievance arose.

15. Is a Union officer/steward who was certified in accordance with the provisions of Article 17.2.B entitled to be compensated pursuant to the provisions of Article 17.4, *Payment of Stewards*?

Response: Yes, provided he/she is acting in lieu of the certified steward.

16. Is the Union officer/steward who was certified in accordance with Article 17.2.B, entitled to travel time and expenses when traveling between stations and branches for the purpose of performing the duties of a shop steward?

Response: No, Article 17.4 does not provide for the payment of travel time.

17. May an Area Local President certify stewards to the installation head in offices within that Area Local?

Response: Yes**.**

18. What information may a steward obtain regarding an official discussion that relates to subsequent disciplinary action issued to the employee?

Response: If a discussion was relied upon in the issuance of discipline to an employee, to establish that the employee had been advised of his/her responsibilities, the steward may orally obtain the date and subject of that discussion from the supervisor.

19. Can stewards interview postal inspectors in the course of the Union's investigation?

Response: Stewards can interview postal inspectors or OIG officers with regard to events upon which a disciplinary action was based when the postal inspectors or OIG officers actually observed those events.

20. Can a grievant accompany a steward during a Step 1 investigation?

Response: No.

21. What information is the Union entitled to when investigating a grievance or a possible grievance?

Response: Articles 15, 17, and 31 intend that any and all information which the parties rely on to support their positions in a grievance is to be furnished and exchanged (with the exception of certain medical records). This will foster maximum resolution at the lowest Level. Information requests for timekeeping records, leave records, prior discipline records, staffing records, and work schedule records are normally regarded as relevant with respect to the Union's determination whether or not to file a grievance concerning those matters. For such routine requests, no specific explanation of relevancy is required on the Union's request form. Requests for other types of information require the Union to show the basis of the information's relevancy.

The law has developed special rules for Union requests for information relating to nonbargaining unit members and employee medical information. Information regarding nonbargaining unit members should be provided if it is reasonably probable that the information is relevant to an issue between the parties and would be of use to the Union in carrying out its statutory duties and responsibilities.

22. Can a steward on overtime investigate a grievance?

Response: Requests for additional time to process grievances should be dealt with on an individual basis and shall not be unreasonably denied. A Union steward should not be denied time to perform Union duties based solely on the fact that the steward is in an overtime status.

23. Does a steward have the right to be represented by another steward?

Response: Yes.

24. Will a PSE who serves as an APWU steward have rights over other PSEs when it is necessary to let PSEs go because of lack of work or when there is an opportunity to bring PSEs back to work?

Response: Yes.

25. Does a PSE steward's rights impact who is selected for an available career opportunity?

Response: No.

26. Can a FTR clerk (who was FT at the signing of the 2010 CBA) steward's super-seniority rights be satisfied by offering the steward a NTFT assignment of less than 40 hours or more than 44 hours/week?

Response: No.